

Amendment No. 2 to SB0386

White
Signature of Sponsor

AMEND Senate Bill No. 386*

House Bill No. 522

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 6, Part 3, is amended by adding the following as a new section:

(a) This section is known and may be cited as the "Early Behavioral Intervention and Reporting Act."

(b) As used in this section, "early warning signs" means evidence of safety, health, or behavioral issues exhibited by a student and includes, but is not limited to, indicators of a student engaging in or being the victim of harassment, intimidation, bullying, or cyber-bullying; making or receiving threats of violence; and exhibiting signs of substance abuse, mental health issues, self-harm, or suicidal ideation.

(c) Each LEA and public charter school shall implement a computer-based system that teachers and school staff must use to input data of early warning signs demonstrated by students enrolled in the LEA or public charter school. Each LEA and public charter school shall ensure that each teacher and school staff member is trained to identify early warning signs and on how to input data into the computer-based system.

(d) The computer-based system implemented pursuant to subsection (c) must:

(1) Align with the requirements of § 49-6-4503; the School Discipline Act, compiled in part 41 of this chapter; and the school safety plans adopted by the LEA or public charter school pursuant to the Schools Against Violence in Education (SAVE) Act, compiled in part 8 of this chapter;

(2) Include a database that is capable of receiving and maintaining student data entered by teachers and school staff regarding early warning signs demonstrated by students; and

(3) Immediately notify the LEA personnel serving on the LEA's threat assessment team created pursuant to § 49-6-2701, or the employee of the public charter school who is designated to receive such notifications, when an early warning sign is entered into the system for a student.

(e) The LEA or public charter school personnel who receives notification of an early warning sign of a student pursuant to subdivision (d)(3) shall review the notification, as well as any other notifications previously received for the student, and determine whether further action is needed to address the student's behavior.

(f) An LEA or public charter school may only retain student data entered into the LEA's or public charter school's computer based system while the student for whom it was entered is enrolled in the LEA or public charter school. An LEA or public charter school shall delete all student data entered into its computer-based system for a student who is no longer enrolled in the LEA or public charter school.

(g)

(1) Each LEA and public charter school shall annually submit a report to the department of education that provides the following data collected by the LEA or public charter school in the immediately preceding school year:

(A) The number of early warning signs input into the system;

(B) The number of early warning signs input into the system, disaggregated by the number input by:

(i) A teacher, disaggregated further by the grade levels and subject areas taught by the teacher who input an early warning sign into the system; and

(ii) School staff, disaggregated further by the position, assignment, and duties of the school staff who input an early warning sign into the system;

(C)

(i) The number of students for whom more than one (1) early warning sign was input into the system; and

(ii) The number of early warning signs input into the system for each student for whom more than one (1) early warning sign was input into the system;

(D) A general description of the types of early warning signs input into the system; provided, that a description must not include details or information that would allow a student to be identified; and

(E) A general description of the actions taken by the LEA or public charter school in response to an early warning sign input into the system; provided, that a description must not include details or information that would allow a student to be identified.

(2) Reports provided pursuant to this subsection (g) must not include any details or information that would allow a student to be identified.

(h) Reports made pursuant to this section must comply with the Family Educational Rights and Privacy Act (FERPA) (20 U.S.C. § 1232g); § 10-7-504; the Data Accessibility, Transparency, and Accountability Act, compiled in chapter 1, part 7 of this title; and all other relevant privacy laws.

(i) If the commissioner of education finds that an LEA or public charter school is not complying with this section, then the commissioner may withhold state funds, in an amount determined by the commissioner, from the LEA or public charter school until the LEA or public charter school is in compliance with this section.

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it.